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Provision of March 27, 2025
Register of provisions
n. 174 of March 27, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European
Parliament and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to the
processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018 n. 101, containing
provisions for the adaptation of the national
legal system to the aforementioned Regulation (hereinafter
"Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation n. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISE

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With a complaint dated July 13, 2023, regularized and
supplemented on October 3, 2023, Mr. XX complained
about receiving numerous promotional SMS messages,
originating from gyms in the "02fitness" circuit,
without ever having given consent and without
the possibility to object.

The messages, according to the complainant, were sent from
the phone numbers 3661988237 - 3285782813 - 3922543806;
two of these numbers were also listed as contacts
on the website 02fitness.it and were related
to the gym in Rimini (3285782813) and Villa
Verucchio (3661988237). The website 02fitness.it
indicated at the bottom the following entities: Soleo
s.s.d.a r.l. P.I.-C.F. 04159360405 (hereinafter,
Soleo) - POWERFIT S.S.D.A R.L. P.I.-C.F. 04565330406
(hereinafter, Powerfit) - A.S.D. TEUTA P.I.-C.F.
04054660404 (hereinafter A.S.D. Teuta).

Mr. XX submitted numerous screenshots
of the received messages that unequivocally contained
promotions for the gyms 0.2 Villa Verucchio and 0.2 Rimini and indicated the same

phone numbers for more information, in addition to some messages with more generic promotions from the 02fitness circuit. Some of these messages were also sent via the WhatsApp channel.

The complainant also stated that he could not find specific information about the data controller, since the privacy policy was not available on the website 02fitness.it; he thus limited himself to indicating to the Guarantor the information provided in the footer of the website itself and related to the aforementioned companies.

The complainant also attempted to express his objection by responding to the received SMS and WhatsApp messages. In one chat (related to the gym 02 Villa Verucchio), it appears that, in response to a request to be removed from the lists, he was told, "Serious problems. You need to relax a bit; you can always block the number yourself instead of threatening the people who WORK." Finally, the complainant replied via SMS stating that he could not block the messages because they came from always different numbers and anticipated that he had reported the matter to the Guarantor. To this message, he received the reply "how scary"; this chat, dated July 12, 2023, also seems to be related to the gym 02 Villa Verucchio.

On January 26, 2024, the Office accessed the website 02fitness.it in order to identify the data controller(s). On this occasion, it was learned that the link present on the site, "Privacy & Cookie Policy" did not lead to any information but redirected to the home page, thus confirming that no information was available about the data controller and the processing itself.

Therefore, the Office, on March 11, 2024, made a request for information to the entities indicated on the website: Soleo s.s.d.a r.l. and Powerfit S.s.d.a.r.l. (both via certified email) as well as to the addresses villaverucchio@02fitness.it and rimini@02fitness.it. Following this request, on March 25, 2024, an email from Attorney XX was received containing the power of attorney from Mr. XX, in his capacity as legal representative of Soleo, Powerfit, and A.S.D. Teuta; in this email, Attorney XX, on behalf of Powerfit, requested clarifications as "not having found this company among the contacts to which promotional messages were sent, the name of Mr. XX and not being the owner of the mobile numbers indicated by Mr. XX, requests to be informed of the mobile number of the complainant in order to verify in their own databases and any messages attached by Mr. XX."

A few days later, on March 29, 2024, another email from Attorney XX was received with attached powers of attorney from:

- XX, indicated as legal representative of Powerfit s.s.d.a.r.l. (VAT No. 04565330406), of Soleo s.s.d.a.r.l. (VAT No. 04159360405) and A.S.D. TEUTA (VAT No. 04054660404);
- XX, indicated as legal representative of Zero

Due Villa s.s.d.a.r.l. (VAT No. 04579380405);
- XX, indicated as legal representative of Soleo
s.s.d.a.r.l. (VAT No. 04159360405)

This communication referred to the fact
that a similar response would be sent to the
claimant by registered mail (although the PEC address was clearly indicated).

With this communication, attorney XX declared that he was responding on behalf of Powerfit, Soleo, and Zero Due Villa, referring to a request from the Guarantor that would have arrived on February 13, 2024; it is specified that the request from the Guarantor was sent on March 11, 2024, therefore it is plausible that the date indicated by attorney XX is a typographical error.

Regarding Powerfit, it was stated that "it is not the owner of any of the telephone numbers indicated, therefore it did not send any advertising messages to Mr. XX and it is believed that this company was mentioned in the report by mistake."

Regarding Soleo and Zero Due Villa, it was stated that the messages that Mr. XX would have received were not attached to the complaint, nor was the mobile number on which the claimant would have received such messages indicated. In this regard, attorney XX also specified that he could not provide a response because he had not received an answer to his request to know the claimant's number, a request allegedly sent on February 25, 2024, but actually received by email on March 25, 2024 (it is likely that this is another typographical error in the date indication). In this note, it was also added that the companies Soleo and Zero Due Villa "have proceeded to purchase contact packages for advertising purposes, telephone numbers for which the owners had previously represented their consent to the processing of data"; adding, then, that "in response to Mr. XX's reports of not wanting to receive advertising messages, his data has been immediately deleted from the reference database, if it is true that he had to make multiple requests, it is likely that he provided consent, even if only online, for various databases. Mr. XX attaches only one form from which it is not clear when, how, and to whom he delivered it and whether it was the only one, as he could have signed multiple ones."

Therefore, based on what could be understood from the unclear arguments:

- a) Soleo and Zero Due Villa purchased databases from third parties but it was not possible to verify from which database the claimant's data would have been extracted because, according to the statements, the Office would not have disclosed the claimant's number;
- b) however, as described above, the same companies also stated that such data would have been deleted "immediately from the reference database" as soon as they received "the reports" from Mr. XX; it is not clear, however, what that reference database was, nor how it was possible to delete the data since it was stated that the telephone number of the claimant was unknown;
- c) it was hypothesized that the claimant may have given consent to various databases and for this reason received different messages, but there is no evidence of the claims made and, in any case, as clarified multiple times by the Authority, granting consent to third parties cannot be considered a valid legal basis for sending promotional messages in the event of an expressly stated opposition against the data controller (who is required to take note of it in a specific blacklist).

The response from attorney XX included numerous documents not precisely referenced in the response note (and in some cases duplicated), some of which were entirely irrelevant, such as the receipt for the activation of a POS service or the agreement for a credit assignment service; among such attachments were the privacy notices from various portals that deal with data collection to create marketing lists (www.buoni-regali.com; www.buonicoupon.it; www.firmiamo.it; www.impiego24.it; www.impiego.eu; www.jobgratis.com; www.lavoro24.it; www.lavoro.live).

However, it was not clarified which of the contacted companies had used such databases and during which period, nor whether preventive checks were planned on the legality of the lists acquired from third parties.

The Office, with a note dated April 5, 2024, therefore replied clarifying first of all that - contrary to what was stated by attorney XX - the request for information sent on March 11, 2024, included all the

messages received from Mr. XX along with the indication of his telephone number (see attachment 2 to the request of March 11, 2024). On this occasion, the three companies were invited to clarify the roles and responsibilities of each in the processing in question by attaching relevant documentation.

In response to this note, attorney XX, on behalf of the three mentioned companies, continuing to contest the absence of the attachment (which, from the protocol records, was instead shown to have been delivered), replied on April 10, 2024, with an email containing:

- the response note sent on behalf of the data controllers;
- the chamber of commerce registrations of Powerfit, Soleo, and Zero Due Villa;
- the powers of attorney of the legal representatives of Powerfit, Soleo, and Zero Due Villa (already submitted on March 29, 2024);
- a copy of attorney XX's document (already submitted on March 29, 2024);
- the receipt of the second registered letter sent to the claimant;
- an email exchange in which, lastly, XX sent to attorney XX the report of XX made to the Guarantor on July 13, 2023;
- a .jpeg file, named "4 second screen site," which contained text, presumably a fragment of information lacking indications of origin, of which only the full text was readable.
direct marketing; it was stated here that promotional messages could only be sent if the user had selected the appropriate checkbox during registration;

- a .jpeg file, named "4 fourth screen site" containing a selection from a print screen with registration data, also lacking indications of origin;

- two .dat files, named "4 fourth screen site" and "4 third screen site" which could not be opened. This note therefore contained part of the statements already made on March 29, 2024, in addition to further clarifications that, however, did not sufficiently document the treatments carried out. It continued to be reiterated that "the attachment 2 mentioned by you, which was supposed to be attached to your certified email of February 13, 2024 (note: the date is still incorrect) is not present, but only the documents of the complainant and the complaint are present, therefore the complainant's phone number and the messages in question could not be known." However, acknowledging that the complainant's user account had been mentioned in the Office's note of April 5, 2024, further checks would be made. Therefore, the holders declared that this user account would have been provided by the complainant himself by registering on the site "02 fitness - gym Rimini" (it is assumed that reference was intended to be made to the address 02fitness.it). According to what was stated by lawyer XX, after entering the data, the system would send an SMS to the phone number indicated during registration with a password to be entered to complete the procedure. Among the attachments, as mentioned, there was a screen - lacking indications regarding the software from which it was extracted and the related data controller - containing a series of data referring to a subject registered as "user 8901"; among the data related to this user, the complainant's mobile number was also present and the registration date appeared to be March 27, 2023. The identifying data related to this user seemed to be, very likely, fictitious ("first name: Jojo, last name: Test"). An email address was also present. However, it did not appear that there was a field for this user documenting the release of specific consent for the receipt of promotional messages. Contrary to what was requested in the note from the Guarantor of April 5, 2024, no clarification was provided regarding the roles and responsibilities of the involved companies.

On April 15, 2024, the complainant, lamenting that the processing had not stopped, sent a copy of other SMS messages that he had received after the statements made by lawyer XX regarding the alleged deletion from all databases (the last SMS received was on April 4, 2024).

With a certified email on April 20, 2024, the complainant - after also receiving the registered letter with the second response from the holders - provided his observations stating that he had never registered on the site and did not know the fictitious references associated with his phone number. He also recalled that on the website 02fitness.it the privacy policy was not accessible and that the data collection form present there (of which he attached a screenshot) allowed for maximum registration on the site but did not allow for the expression of consent for marketing purposes.

To verify the statements made by the parties, the Office, on July 1, 2024, made a new access to the

site 02fitness.it confirming what the complainant had stated. In fact, on the homepage, there were three buttons: "gyms," "services," "about us."

Clicking on each of these three buttons opened the following screen with a data collection form:

As can be seen from the content of the form, the user was asked to register to receive information on the contents indicated in the buttons ("gyms," "services," and "about us"). It was mandatory to provide first name, last name, email, and phone number, and it was also mandatory to "subscribe" to the privacy policy. However, the latter was not accessible in any way, as the red link "Privacy Policy" redirected to the homepage, and the same happened when clicking on the link "Privacy & Cookies Policy" present on the homepage. In the absence of this information, it was not possible to understand for what purposes this data was being collected, by what means, and by whom it would be processed, nor how it would be possible to exercise one's rights. Moreover, it was not clear what benefit a user would derive from such registration since, to obtain information about "gyms," "services," and "about us," it should not - in principle - be necessary to provide any personal data, let alone register for a service. It was also confirmed that there was no field for requesting consent to receive promotional messages except for the "consent" field placed at the bottom and marked as mandatory, which, however, referred to "I subscribe to the Privacy Policy."

Furthermore, during this access, it was possible to verify that the registration procedure seemed to succeed only if an email address was entered; in that case, the procedure ended with the message "Check your email inbox, we have sent you the password to access." Instead, an error message was returned if a phone number was entered without indicating an email address. It follows that - contrary to what was stated by lawyer XX - the channel through which the password to confirm the registration should have been sent was the email address and not the phone number. Therefore, the complainant's willingness to...

registering on the site and, in any case, it was never proven that a suitable consent for receiving promotional messages was acquired.

2. THE CONTESTATION OF VIOLATIONS

In this context, the Office has contested to Powerfit, Soleo, and Zero Due Villa the violations identified in the initiation of the procedure dated July 3, 2024, prot. no. 81465/24, notified via certified email to lawyer XX, at whose address domicile had been elected. Here, the motivations expressed in the aforementioned act are fully referenced, and Powerfit, Soleo, and Zero Due Villa have been contested for the violation of Article 6, paragraph 1, letter a) of the Regulation and Article 130, paragraph 2 of the Code regarding the sending of SMS without consent; furthermore, the violation of Article 5, paragraph 2 and Article 24 of the Regulation was deemed to be integrated concerning the responsibility of the data controllers, as well as the violation of Article 17 of the Regulation for the failure to respect the right to erasure due to the fact that the complainant had repeatedly requested that his unlawfully acquired data be deleted from the lists used for marketing without obtaining satisfaction, but rather receiving in some cases mocking responses and continuing to receive messages even after assurances were given by the data controllers to the Authority during the investigation.

Moreover, considering that no information on the processing of personal data was available on the website, the violation of Articles 5, paragraph 1, letter a), 12, paragraph 1, and 13 of the Regulation was deemed to be integrated. Finally, regarding the fact that to obtain information about gyms and the services offered, it was mandatory to register on the site, providing various personal data, in the absence of information on the processing and its related purposes, and finding no necessity to collect and store personal data solely for the purpose of obtaining information, it was deemed that such processing had been carried out without any purpose, in violation of Article 5, paragraph 1, letter b) of the Regulation.

THE DEFENSE OF THE COMPANY

In the defensive memorandum dated July 23, 2024, lawyer XX, on behalf of Powerfit, Soleo, and Zero Due Villa, represented the following:

- a) the involved companies are non-profit and would be significantly harmed by the application of an administrative monetary sanction;
- b) Powerfit should be considered unrelated to the facts as it is "not the holder of the reported numbers; the advertising contained in the messages sent to Mr. XX concerns the gym 02 of Villa Verucchio and

not the gym in Rimini";

c) the a.s.d. Teuta is not present in the Business Register as an amateur association and would also not be involved in the facts as "the advertising sent to XX does not concern it";

d) as small business entities, some tasks - such as "privacy" and the website - would have been outsourced, and the owners have never directly dealt with them. Regarding the website, in particular, the defensive memorandum states, "Including the misunderstanding in the access methods, it was not known to the companies which, having entrusted it to an external party, do not deal with it directly. The technician in charge has reported that such misunderstanding occurs occasionally and is in the process of being restored. The email indicated by Mr. XX and his phone number are present in the system; therefore, Mr. XX reported them from the site, probably at a time when the system was functioning, while the problem with the site is current";

e) the companies have offered the complainant six months of free access to one of the gyms of his choice.

3. LEGAL ASSESSMENTS

Based on the factual profiles highlighted above and the statements made in the response, for which the declarants are responsible under Article 168 of the Code, it is deemed appropriate to confirm the violations identified in the notice of contestation.

It is indeed evident from the records that the complainant has received multiple unwanted messages, both via SMS and via WhatsApp, without being able to block them in any way; even the attempts made to directly contact the senders have proven fruitless, in addition to receiving mocking and derisive responses in reply.

From what can be gathered from the attached messages, they were aimed at conveying promotions for the gyms of the 02fitness circuit apparently for the locations of Villa Verucchio and Rimini. In the absence of information on the data controller, to direct the first request for information, reference was made to what was indicated on the site 02fitness.it: at the bottom of the homepage, three subjects with their respective VAT numbers were indicated: Powerfit, Soleo, and a.s.d. Teuta; the latter was not found in the Business Register. Additionally, in the absence of other information and beyond the certified emails sent to Powerfit and Soleo, the email contacts villaverucchio@02fitness.it and rimini@02fitness.it were used, indicated as respectively attributed to the gyms of Villa Verucchio and Rimini.

It has never been possible to ascertain how the contacted subjects were concretely involved, nor what their roles were in the processing of personal data because, despite having requested it multiple times during the investigation, the responses received through lawyer XX have never clarified, and above all proven, these aspects.

In response to the request for information dated March 11, 2024, a response was provided with an interlocutory note from lawyer XX, initially aimed only at asking for the complainant's phone number (information that had already been provided). To this first response, a power of attorney to the lawyer is attached.

XX signed by XX in the capacity of legal representative of Soleo, Powerfit, and a.s.d. Teuta. A few days later, on March 29, 2024, lawyer XX sent a response note on behalf of Powerfit, Soleo, and Zero Due Villa, indicating three different legal representatives, namely: XX, XX, and XX (with corresponding powers of attorney). No information was provided in this context regarding a.s.d. Teuta. Similarly, in the supplementary note of April 10, 2024, lawyer XX stated that he was responding on behalf of the same entities, without mentioning a.s.d. Teuta.

For these reasons, the initiation act of the procedure was addressed only to Powerfit, Soleo, and Zero Due Villa at lawyer XX's office. The subsequent defense memorandum received (see email of July 23, 2024) is signed by lawyer XX along with the aforementioned representatives of Powerfit, Soleo, and Zero Due Villa. However, the text only briefly mentions a.s.d. Teuta in one passage, which is transcribed here: "The T.A.S.D. TEUTA is not present in the business register as it is an amateur sports association for which registration is not required and is not involved in the matter as the advertisement sent to XX does not concern it."

During the investigation, it was confirmed that the privacy notice was not present on the website

02fitness.it and therefore it was not possible for the interested parties to understand who the data controller was and how to exercise their rights (as complained by Mr. XX). Furthermore, there was a form to fill out, mandatorily collecting certain personal data, solely for the purpose of obtaining general information that could have been conveyed through the website without the need to collect personal data; data that, as mentioned, would have been provided by the interested parties without receiving any information regarding the processing and even regarding the identity of the data controller. It follows that a processing activity was carried out without any suitable legal basis and in the absence of information.

Regarding the sending of messages and the legal basis for such processing, the justifications provided by the involved companies were contradictory and not adequately documented. Initially (see note of March 29, 2024), it was stated that Soleo and Zero Due Villa had purchased databases for marketing from third-party companies. Subsequently (see note of April 10, 2024), it was stated that such databases were purchased by Powerfit, Soleo, and Zero Due Villa. Also, in the response of April 10, 2024, it was added that Mr. XX's data had been entered—according to the declarants by XX himself—on the website 02fitness.it through a registration on the portal. In this regard, it has already been noted that such registration, detached from any context, containing presumably fictitious data and lacking elements proving consent to receive promotional messages, is not suitable to document in any way the will of the complainant; the latter, moreover, expressly stated that he had never made any registration and did not know the data allegedly related to him.

And in any case, even if absurdly one were to believe this documentation and had a lawfully collected consent, all subsequent sends after the cancellation requests would still be unjustified.

Regarding the responsibilities of the individuals in the overall conduct described, as no clarification was provided regarding the activities concretely carried out by Powerfit, Soleo, and Zero Due Villa, it must be assumed that they share equal responsibility in the matter, also considering that the website, with the related data collection form, is unique for all gyms and the messages received by Mr. XX referred to both Rimini and Villa Verucchio. This overall responsibility implies that all involved companies acted without caring in any way about the activities carried out by third parties on their behalf. It is noted that the Authority has repeatedly clarified that the responsibilities of the data controller do not diminish even if some activities are concretely carried out by third parties on behalf of the data controller itself (see, for example, the provision of February 10, 2022, doc web no. 9756853).

One last note concerns the behavior exhibited during the investigation, considering that lawyer XX repeatedly stated that he had not received either the complainant's phone number or copies of the unwanted messages that were the subject of the complaint. These elements were instead correctly transmitted via certified email from the protocol register, and the content of the responses provided, despite the contradictions and typos, suggested that such information was known to the declarants: otherwise, it is unclear how one could claim to have deleted the data after the report if such data were not known, nor is it understood how one could declare the estrangement of certain subjects from the promotional content sent without having seen the messages themselves.

4. CONCLUSIONS

For the reasons stated above, it is believed that the responsibility of Powerfit, Soleo, and Zero Due Villa has been established regarding the following violations:

- a) Article 6, paragraph 1, letter a) of the Regulation and Article 130, paragraph 2 of the Code regarding the sending of SMS without consent;
- b) Article 5, paragraph 2 and Article 24 of the Regulation regarding the responsibility of data controllers who have not been able to document the existence of adequate security measures;
- c) Article 17 of the Regulation for failure to comply.
of the right to erasure due to the fact that the complainant had repeatedly requested that his unlawfully acquired data be deleted from the lists used for marketing without receiving satisfaction, but rather, in some cases, receiving mocking responses and continuing to receive messages even after assurances were given by the data controllers to the Authority during the investigation;
- d) Articles 5, paragraph 1, letter a), Article 12, paragraph 1, and Article 13 of the Regulation, as no

information on the processing of personal data was available on the website;

e) Article 5, paragraph 1, letter b) of the Regulation, due to the fact that to obtain information about gyms and the services offered, it was mandatory to register on the site, providing various personal data, in the absence of information on the processing and its related purposes, with no necessity found to collect and store personal data solely for the purpose of obtaining information, thus carrying out processing without any purpose.

Having established the unlawfulness of the conduct of Powerfit, Soleo, and Zero Due Villa concerning the treatments examined, it is necessary to:

- impose on the aforementioned companies, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any processing for promotional purposes of the personal data of the data subjects collected in the manner described, through the form present on the website 02fitness.it;
- adopt an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against these companies of the administrative pecuniary sanction provided for by Article 58, paragraph 2, letter i) and Article 83, paragraphs 3 and 5, of the Regulation.

In accordance with the provisions of Article 154-bis, paragraph 3 of the Code, this decision is published on the Authority's website (see also Article 37 of the internal regulation of the Authority No. 1/2019).

It is finally noted that the conditions referred to in Article 17 of the Authority's Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met for the annotation of the violations identified here in the Authority's internal register, as provided for by Article 57, paragraph 1, letter u) of the Regulation.

It is also reminded that, pursuant to Article 170 of the Code, anyone who, being obliged, does not comply with this prohibition order on processing is punished with imprisonment from three months to two years and that, in case of non-compliance with the same order, the sanction referred to in Article 83, paragraph 5, letter e) of the Regulation is also applied administratively.

5. INJUNCTION ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION

Based on the above, various provisions of the Regulation and the Code have been violated in relation to connected treatments carried out by Powerfit, Soleo, and Zero Due Villa, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same treatment or connected treatments, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation, with the consequent application of only the sanction provided for by Article 83, paragraph 5, of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, in setting the maximum penalty at the sum of 20 million euros or, for companies, at 4% of the annual worldwide turnover of the previous financial year if higher, specifies the methods of quantification of the aforementioned sanction, which must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the relative amount.

In fulfillment of this provision, assuming, based on the information available in the last financial statements (registered, for all three companies, as of December 31, 2023), the occurrence of the first hypothesis provided for by the aforementioned Article 83, paragraph 5 and thus quantifying the maximum applicable penalty at 20 million euros, the following aggravating circumstances must be considered:

1. the duration and severity of the violation, as the complainant tried for months to obtain the cessation of unwanted messages without satisfaction and was even mocked, thus being forced to request the intervention of the Authority (Article 83, paragraph 2, letter a), of the Regulation);
2. the seriously negligent nature of the violations, as the Companies demonstrated serious negligence

in the processing of personal data along with total disregard for the activities carried out and their related consequences (Article 83, paragraph 2, letter b), of the Regulation);

3. the measures adopted by the data controllers, which proved to be completely insufficient to ensure respect for the rights of the data subjects (Article 83, paragraph 2, letter c), of the Regulation);

4. the degree of responsibility of the data controllers, taking into account the absence of adequate measures to ensure the correctness of the processing carried out for promotional purposes and the respect of the basic rights of the data subject even after the contestation of the unlawfulness received from the Authority (Article 83, paragraph 2, letter d), of the Regulation);

5. the degree of cooperation with the supervisory Authority, considering that the Companies provided contradictory and undocumented justifications and did not provide clarifications.

requested (art. 83, par. 2, lett. f), of the Regulation).

The following mitigating factors are considered:

1. the number of individuals involved, as it appears from the records that the sending of unwanted messages only concerned the complainant (art. 83, par. 2, lett. a) of the Regulation);

2. the absence of relevant previous violations committed by the data controllers (art. 83, par. 2, lett. e), of the Regulation);

3. the categories of data affected by the violation, as it only involved common data (art. 83, par. 2, lett. g), of the Regulation);

4. the nature of the micro-enterprise of the Companies, which engage in non-profit amateur sports activities (art. 83, par. 2, lett. k of the Regulation).

In an overall perspective of necessary balancing between the rights of the data subjects and the freedom of enterprise, it is essential to prudently assess the aforementioned criteria, also to limit the economic impact of the sanction.

Therefore, it is believed that - based on the overall elements mentioned above - the following should be applied:

- to Powerfit the administrative sanction of a payment of €6,000.00 (six thousand) equal to 0.03% of the maximum administrative fine of €20 million;

- to Soleo the administrative sanction of a payment of €6,000.00 (six thousand) equal to 0.03% of the maximum administrative fine of €20 million;

- to Zero Due Villa the administrative sanction of a payment of €6,000.00 (six thousand) equal to 0.03% of the maximum administrative fine of €20 million.

In this context, it is also believed that, pursuant to art. 166, paragraph 7, of the Code and art. 16 of the internal regulation of the Authority no. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed.

In implementation of the principles set forth in art. 83 of the Regulation, the imposition of this accessory sanction appears proportionate in relation to the severity and particular disvalue of the conduct subject to censure, taking into account the risk elements for the rights and freedoms of the data subjects (potentially all individuals for whom the above-mentioned registration form was adopted) that have not yet been mitigated by the controllers despite the initiation of the procedure.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

pursuant to art. 57, par. 1, lett. f), of the Regulation, declares unlawful the processing described in the terms of the motivation carried out by: Powerfit s.s.d.a.r.l., based in Rimini, via Marecchiese 152, VAT number 04565330406; Soleo s.s.d.a.r.l., based in Cattolica (RN), via Gaetano Donizzetti 41, VAT number 04159360405; Zero Due Villa s.s.d.a.r.l., based in Rimini, via Marecchiese 152, VAT number 04579380405; consequently, pursuant to art. 58, par. 2, lett. f), it imposes on Powerfit s.s.d.a.r.l., Soleo s.s.d.a.r.l. and Zero Due Villa s.s.d.a.r.l. the prohibition of any processing for promotional purposes of the personal data of the data subjects collected, in the manner described, through the form present on the website 02fitness.it.

ORDERS

pursuant to art. 58, par. 2, lett. i), of the Regulation:

a) to Powerfit s.s.d.a.r.l., in the person of its legal representative, to pay the sum of €6,000.00 (six thousand) as an administrative pecuniary sanction for the violations indicated in the motivation; it is stated that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the

dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

b) to Soleo s.s.d.a.r.l., in the person of its legal representative, to pay the sum of €6,000.00 (six thousand) as an administrative pecuniary sanction for the violations indicated in the motivation; it is stated that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

c) to Zero Due Villa s.s.d.a.r.l., in the person of its legal representative, to pay the sum of €6,000.00 (six thousand) as an administrative pecuniary sanction for the violations indicated in the motivation; it is stated that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction.

ORDERS

the aforementioned Companies, in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, to pay each the sum of €6,000.00 (six thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to art. 27 of law no. 689/1981;

DISPOSES

a) pursuant to art. 154-bis of the Code and 37 of the internal regulation of the Authority no. 1/2019, the publication of this provision on the Authority's website;

b) pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the internal regulation of the Authority no. 1/2019, the publication of the injunction order on the Authority's website;

c) pursuant to art. 17 of the internal regulation of the Authority no. 1/2019, the annotation in the internal register.

of the Authority, provided for by art. 57, par. 1, lett. u) of the Regulation, of the violations and the measures adopted.

Pursuant to art. 78 of Regulation (EU) 2016/679, as well as arts. 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this measure may be filed with the ordinary judicial authority, by submitting a petition to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of the measure itself, or within sixty days if the appellant resides abroad.

Rome, March 27, 2025

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Scorza

THE SECRETARY GENERAL

Mattei